

**CITY OF MANCHESTER, NEW HAMPSHIRE
ZONING BOARD OF ADJUSTMENT**

Case No. ZBA2026-063 — 26 Titus Avenue (Map 554, Lot 17C)

Applicant: T&L 2018, LLC

MOTION FOR REHEARING

Pursuant to RSA 677:2

NOW COME Nickolas J. Levasseur and Alison Famisan-Levasseur of 30 Mystic Street, Manchester, New Hampshire 03103, **[and the following abutters: names and addresses, or delete]** (together, the “Movants”), and respectfully move the Zoning Board of Adjustment (the “Board”) to grant a rehearing of its decision of September 10, 2026 granting the variances requested in the above-captioned application. In support of this motion the Movants state as follows.

I. Standing and Timeliness

1. The Movants are parties to this proceeding within the meaning of RSA 677:2. Nickolas J. Levasseur spoke in opposition at the public hearing on September 10, 2026, within the three-minute limit the Chair imposed on public testimony, and, together with Alison Famisan-Levasseur, submitted written testimony and a Memorandum in Opposition to the Board by email before the hearing. **[If abutters join: The abutters named above are abutters as defined in RSA 672:3 and received notice of the hearing.]**
2. The Board voted to grant the application on September 10, 2026. This motion is filed within 30 calendar days of that vote, as RSA 677:2 requires. The Board's written decision was filed on **[date]**. To the extent the written decision was filed more than five business days after the vote, the Movants reserve the right to amend this motion under RSA 677:2.

II. Background

3. The applicant sought relief from six sections of the Manchester Land Use Code to construct two townhouse buildings containing thirteen multifamily dwelling units on a 49,484 square foot buildable lot in the R-1B (Residential One-Family, High Density) district: §4.3-A.1.C (multifamily use), §5.3.1.E (townhouse building type), §8.1.2 (planned development lot area), §5.3.1.E.5.B and §5.3.1.E.5.C (height in stories and feet), and §8.7.2.F.2 (parking location).
4. The applicant's submission consisted of the City's denial letter and zoning review, an assessment card, a GIS map, a two-page memorandum from its engineer, a conceptual site plan, a zoning exhibit, a by-right subdivision plan showing five conforming single-family lots, and conceptual elevations. The submission contained no appraisal, market study, or other evidence concerning surrounding property values, and no quantified analysis of the slope of the parcel.
5. After the public hearing was closed, Vice Chair Craig St. Pierre stated findings and moved to grant relief from all six sections. The motion was seconded and carried four to one, with Member Mathew Carnevale opposed. Before the vote Member Carnevale had asked the applicant's engineer how “an actual hardship exists that would override the prime instruction, which is that this is not an area that's zoned for townhouses,” and whether the applicant had obtained a broker's price opinion on

surrounding property values; the engineer answered, “So no, we did not.” (Recording at 1:50:08–1:51:25.) **[Confirm the spelling of members' names against the minutes.]**

III. Grounds for Rehearing

Ground 1. The decision rests on facts and opinion that are not in the record and that the Movants had no opportunity to address.

6. During deliberations, after the public hearing had been closed, Vice Chair Craig St. Pierre stated: “I do think this property has some very unique characteristics. 18% of it has slope that’s undevelopable by ordinance.” (Recording at 1:56:07.) In his findings he repeated that the lot has “a lot of slopes, including 18% that is undevelopable based on the city’s calculation of the slope review.” (1:57:48.) No witness testified to that proposition. The applicant’s memorandum does not make it. The applicant’s only written reference to slope is that a single-family layout would require grading “built” into the slope.
7. The eighteen percent figure appears to derive from the Zoning Review in the file, which computes buildable lot area as 60,406 square feet less 10,922 square feet for slopes, or 49,484 square feet. That deduction is the ordinance’s method of calculating buildable area on any parcel with steep grades. It is not a finding that the land cannot be developed. The same deduction was applied to the applicant’s own By-Right Subdivision Plan, which nonetheless yields five conforming single-family lots, each with more than 6,000 square feet of buildable area. The ordinance has already accounted for the slope, and the applicant’s own engineer has designed a conforming project around it. A lot-area line item cannot be a special condition of the property when the applicant’s conforming plan already incorporates it.
8. The applicant’s engineer, answering Member Carnevale, conceded that “if you looked at just the square footages, this lot would support more than what we’re showing here, just physically based on buildable area divided by 6,000,” that is, more than the five house lots shown on the by-right plan. (1:53:46.) The hardship theory on which the Board’s findings rest, that the slope deduction renders the land undevelopable, was supplied by a Board member during deliberation, not by the applicant, and the Movants had no opportunity to answer it.
9. During the same deliberations, Vice Chair St. Pierre stated: “Also, I am a real estate broker, and I’m not aware of any circumstance where development of this nature in Manchester has diminished a property around it. I’ve never seen a report or evidence of that. In general, reasonably well thought out development increases values.” (1:59:02.) That statement came minutes after the applicant’s engineer had admitted, in answer to Member Carnevale’s direct question, that the applicant had obtained no broker’s opinion and offered to get one “if the board felt that that was needed.” (1:51:22.) The applicant’s entire written showing on this criterion was a single sentence in its engineer’s memorandum. The Board’s finding under RSA 674:33, I(a)(2)(D) therefore has no support in the record unless a Board member’s own opinion, delivered after the hearing closed, is treated as the applicant’s evidence.
10. Third, the Board found a traffic-safety benefit that no witness had offered. Vice Chair St. Pierre stated during deliberation that “by removing curb cuts into Calef, I think we improve safety tremendously” (1:56:13), and in his findings of fact that allowing the planned development “reduces the need for curb cuts on Calef Road and preserves existing on-street parking, in addition to moving the entrance to one

location that's off of Titus Avenue, which is in general safer to turn on to than the busier Calef.” (1:58:13.)

11. No one testified to that comparison. The applicant's engineer said only that four driveways on Calef Road would be a “difficulty” and that Calef is “a heavily traveled road” (1:09:04), and the owner asked rhetorically whether the City would “really want to have five curb cuts along Calef.” (1:49:28.) Neither offered a traffic count, a trip-generation estimate, a sight-distance analysis, crash data, or any professional opinion that an entrance on Titus Avenue is safer than driveways on Calef Road. The application contains no traffic study of any kind.
12. The only document in the record that bears on intersection safety is the City's Zoning Review, which lists “Visibility at Intersections” under §8.4 as a requirement and records the remark “No Information.” The Board made an affirmative finding that the project improves safety on a record in which the City's own reviewer had noted that no information on the subject had been submitted. The testimony that did address safety ran the other way. Abutters told the Board that this is “a very dangerous area already and very heavily trafficked” (1:32:48), questioned fire-truck access (1:29:12), and stated that “there's been no traffic, parking, or light study to ensure the safety of the intersection.” (1:35:24.) The Board resolved a contested safety question in the applicant's favor using a comparison that no party had made and that the objectors had no opportunity to answer.
13. A board's decision must rest on more than the personal opinion of its members. *Condos East Corp. v. Town of Conway*, 132 N.H. 431 (1989). The burden of proof on each of the five criteria rests with the applicant. *Harrington v. Town of Warner*, 152 N.H. 74 (2005). Facts and expert opinion introduced during deliberation, when no party can question or answer them, deny the opposing parties a fair hearing. The Movants raise this issue now because it could not have been raised earlier: the information was first disclosed after the public hearing was closed.
14. The Movants request that, on rehearing, the Board state on the record the basis for treating the slope deduction as a hardship, the basis of the opinion offered on property values, and the evidentiary basis for the finding that the proposal improves traffic safety, and afford the parties an opportunity to respond to each.

Ground 2. The applicant did not establish unnecessary hardship under RSA 674:33, I(b).

15. Both branches of the hardship test begin with “special conditions of the property that distinguish it from other properties in the area.” Those conditions must be conditions of the land itself, not of the proposed use or the surrounding neighborhood. *Bacon v. Town of Enfield*, 150 N.H. 468 (2004). The applicant's memorandum identifies none. Its response to the first branch states only that the townhouses “fit well into the neighborhood,” which describes the use, not the land.
16. The applicant's own memorandum admits that “the property can support five (5) single family home lots meeting the underlying zoning,” and its engineer drew that plan (By-Right Subdivision Plan, Sheet 3 of 3). A conforming, reasonable use of the property therefore exists without any variance. The applicant's stated reasons for preferring the townhouse project are the number of curb cuts, the cost of grading, and “the benefits to the applicant.” Those are matters of convenience and profit, which do not establish hardship. *Olszak v. Town of New Hampton*, 139 N.H. 723, 726 (1995); *Governor's Island Club v. Town of Gilford*, 124 N.H. 126, 130 (1983).
17. A claimed safety benefit of the proposed design is not a special condition of the property. RSA 674:33, I(b) asks what is distinctive about the land, not whether the project the applicant prefers would

be an improvement on the project the ordinance permits. *Bacon v. Town of Enfield*, 150 N.H. 468 (2004). The Vice Chair's framing was explicitly comparative: "so when I weigh these, I look at, if they're allowed to do or say they did do those five houses, is that more in benefit of safety? Is it more in benefit of the neighbors, of the spirit?" (1:56:20.) That weighs which of two developments the Board would prefer to see. It is not the statutory test. The question under I(b)(2) is whether the property can be reasonably used in strict conformance with the ordinance, and the applicant's own by-right plan answers it.

18. If the configuration of driveways was to carry weight, proving it was the applicant's burden and the applicant did not carry it. When Member Carnevale asked directly whether the applicant had obtained evidence on the fourth criterion, the engineer answered "so no, we did not," and offered to obtain it "if the board felt that that was needed." (1:51:22.) The applicant made the same choice on traffic: it asserted a difficulty and produced no study. A variance applicant who elects not to obtain the evidence supporting a criterion cannot have the finding made for him from the table. The Board relieved the applicant of the burden the statute places on it, and did so on the criterion that decided the case.
19. The four driveways on Calef Road are, in any event, a feature of a drawing the applicant prepared, not a constraint of the land. The parcel has frontage on both Calef Road and Titus Avenue, and the Zoning Review records lot width of 168.95 feet where 150 feet is required. Nothing in the ordinance compelled the conforming layout to place four curb cuts on Calef Road, and no alternative conforming configuration, whether a different lot arrangement, a shared driveway, or fewer lots, was presented to the Board or examined by it. A difficulty the applicant drew into its own exhibit cannot establish that the land cannot be reasonably used in conformance with the ordinance.
20. The applicant purchased the parcel from the City of Manchester on July 17, 2024 as vacant residential land in the R-1B district. While purchase with knowledge of the restriction does not bar a variance, it is a factor the Board may weigh. *Hill v. Town of Chester*, 146 N.H. 291 (2001).

Ground 3. The applicant offered no evidence that surrounding property values would not be diminished, RSA 674:33, I(a)(2)(D).

21. The record contains no appraisal, market analysis, or comparable sales. The only statement on the subject is one sentence from the applicant's engineer. A finding on this criterion cannot rest on that sentence, and, for the reasons stated in Ground 1, cannot rest on a Board member's own opinion. The parcel is bordered within the R-1B district by single-family homes on Mystic Street, Titus Avenue, and Calef Road.

Ground 4. The variances are contrary to the public interest and the spirit of the ordinance, RSA 674:33, I(a)(2)(A) and (B).

22. The Board of Mayor and Aldermen adopted the Manchester Land Use Code on December 16, 2025, after a public process that began in 2021, and it took effect on March 1, 2026. In that code the City determined, district by district, where townhouse and multifamily building types are permitted, and it retained this parcel in the R-1B district with full knowledge of the Laurel Ridge condominiums across Titus Avenue and the Mount Zion Christian School to the east, all of which appear on the applicant's own zoning exhibit.
23. The ordinance states the intent of the R-1B district in terms: "to maintain higher-density neighborhoods of single-family, detached dwellings" (Table 3.3-A, District Descriptions). The applicant's memorandum argued that the spirit of the district is "to provide higher density residential

neighborhoods.” The ordinance says the opposite: the density is to be achieved with single-family, detached dwellings. The same table assigns the transitional role the applicant claims for this project to a different district, R-2, which “forms a loose band around the more densely developed areas of the City, transitioning between mixed-use centers and the lower densities of the single-family districts,” and assigns townhouses to R-M, which is intended “to provide for neighborhoods comprised of a mix of apartment complexes, townhouses, and houses.”

24. Table 4.3-A lists Dwelling, Multifamily as not permitted in R-S, R-1A, R-1B, or R-2; the first district in which it is permitted is R-M. Table 5.3-A permits the Townhouse building type only in R-M, MX-2, BC-1, DT-1, and the Millyard, and by conditional use permit in ID. The ordinance's Townhouse standards (§5.3.1.E) would in fact allow a thirteen-unit townhouse project on a lot of this size in the R-M district. The relief the applicant sought is, in substance, a rezoning of this parcel from R-1B to R-M. That is a legislative act reserved to the Board of Mayor and Aldermen under RSA 675, not a variance.
25. Two of the six variances override the district's principal permitted use and its permitted building types. Granting them relocates, by private application, a line the City drew through its legislative process six months earlier. That conflicts with the ordinance's basic zoning objectives unduly and in a marked degree. *Chester Rod & Gun Club v. Town of Chester*, 152 N.H. 577, 581 (2005); *Harborside Assocs. v. Parade Residence Hotel*, 162 N.H. 508, 514 (2011).
26. Under §8.1.2, at 6,000 square feet of lot area per unit, the parcel supports eight units even under the planned-development standard. The applicant sought thirteen.

Ground 5. The relief granted may not be complete.

27. The zoning review marks §8.7 Planned Developments “Not Permitted within the District.” Section 8.7.1.C provides that “planned developments shall only include such building types as are permitted in the district,” so a two-building townhouse development in R-1B is not permitted as a planned development independently of the use and building-type prohibitions. No variance from §8.7.1.C was requested or granted.
28. Section 8.7.2.B.2 provides that for parcels of less than five acres, “the rear yard setback of the district shall apply to all side and rear lot lines.” The R-1B rear yard setback is thirty feet. The approved site plan shows ten-foot side and rear setbacks along the north and east lot lines. No variance from §8.7.2.B.2 was requested or granted. The approval therefore rests on a plan that cannot be built as drawn without further relief the Board has not considered. The Movants request that the Board confirm on the record, with input from Planning and Community Development staff, whether the six sections granted constitute all relief the approved plan requires.

Ground 6. Participation of the Vice Chair.

29. RSA 673:14, I provides that no member of the Board shall participate in deciding a matter in a judicial capacity if that member would be disqualified for any cause to act as a juror upon the trial of the same matter. A member of a quasi-judicial board must be indifferent between the parties. The Board's own By-Laws provide that a member with a direct personal or financial interest shall disqualify himself and absent himself from the Board table during the public hearing and all deliberation (Article IV), and that members “must not engage in ‘ex parte’ conversations material to the application” (Article XV).
30. The record of the September 10 deliberations shows the Vice Chair acting as an advocate for the application rather than as an adjudicator of it. He advanced a hardship theory the applicant had not

argued. He supplied expert opinion on property values that the applicant had not offered. And in raising the possibility that future owners of single-family lots might remove trees, a matter with no bearing on any of the five statutory criteria, he stated: “One of the perennial things that we see in almost all of these cases is the trees and the cutting down, and, as the applicant had, beat me to, when folks are doing a single family they can cut all those trees down.” (Recording at 1:55:50.) The remark indicates that he had arrived at deliberation with arguments in support of the application prepared in advance and was tracking which of them the applicant had already made. The Movants do not allege bad faith, and do not know whether the Vice Chair had any contact with the applicant outside the public hearing. They raise the matter at the earliest opportunity available to them, since the conduct occurred during deliberation after the hearing was closed. *Webster v. Town of Candia*, 146 N.H. 430 (2001).

31. The Movants request that the Vice Chair disclose on the record any communication with the applicant, its principals, or its engineer concerning this application outside the public hearing, and any business or professional relationship with them; and that he recuse himself from the vote on this motion and from any rehearing. Participation by a member who should have been disqualified invalidates the decision regardless of how the remaining members voted. *Winslow v. Town of Holderness Planning Board*, 125 N.H. 262 (1984).

Ground 7. The dissent identified the same failures.

32. Member Carnevale's stated reasons for voting against approval, the absence of hardship, the absence of any assessment of the effect on property values, and the failure to observe the spirit of the ordinance, track Grounds 2 through 4 above and confirm that the deficiencies in the applicant's showing were apparent on the record before the Board.

Ground 8. The Board applied a different standard to this application than it applied, minutes earlier, to Case No. ZBA2026-055.

33. Immediately before this case, the Board heard Case No. ZBA2026-055, 218 South Lincoln Street, in which the owner of a two-family dwelling in the R-2 district sought a variance from the same section, §4.3-A.1.C, to add a third unit inside the existing building. That application sought one variance, met every dimensional standard in the zoning review, proposed six parking spaces where three were required, changed no exterior footprint, and was supported by a written broker's opinion on property values and an annotated map of the surrounding neighborhood. The Board denied it unanimously.
34. The Chair asked Vice Chair St. Pierre to state the findings of fact, as he did later in this case. In stating those findings, Vice Chair St. Pierre said: “The inability to subdivide is not a hardship.” He said the spirit of the R-2 district “is a mix of single and duplexes,” and that because the applicant's own exhibit showed “41 singles, five two-families, and one three,” the request was “clearly out of the spirit of the ordinance by definition, but it's also not in keeping with the character of this neighborhood.” He said that a condition the applicant had a hand in creating is “not a hardship,” and that if such a condition were considered at all it was self-created, and that “there's no evidence here in my mind that the spirit's observed or any substantial justice is done, let alone a hardship.” (Recording at 1:00:04–1:01:28; findings at 1:02:57–1:04:04.) Member Carnevale added that the hardship criterion “can't override the fundamental purpose of what something's zoned for.” (1:02:15.)
35. Each of those propositions applies with greater force to this application. The ordinance states the intent of R-1B as “single-family, detached dwellings,” a narrower use than the mix of singles and

duplexes that defines R-2. The applicant's own zoning exhibit shows that every residential lot abutting the parcel within R-1B is developed with single-family homes. The applicant bought the parcel from the City as R-1B land in 2024, and its own engineer drew a conforming five-lot plan. The applicant offered no evidence at all on property values, where the South Lincoln applicant had offered a broker's opinion. Yet within the same hour the same member described this neighborhood as "a transitional area," supplied the missing hardship and property-value evidence himself, and moved to approve six variances, including the use and the building type, for a project on a lot at 63 percent of the required area.

36. A three-unit conversion inside an existing building, in a district that already permits two-family dwellings, was denied for want of hardship and spirit. A thirteen-unit, three-story multifamily development, in a district that permits neither multifamily use nor the townhouse building type, was approved minutes later on a weaker record. A board acting in a quasi-judicial capacity must apply the statutory criteria consistently to the applications before it. A decision that cannot be reconciled with the Board's own stated reasoning in a like case decided the same evening is unreasonable within the meaning of RSA 677:6, and the Board's decision offers no explanation for the difference.

IV. Incorporation of the Record

37. The Movants incorporate by reference their Memorandum in Opposition dated September 9, 2026 and their written testimony, both of which are in the Board's file, and preserve every ground stated in them. Quotations above are taken from the City's recording of the September 10, 2026 meeting at the times indicated; a transcript of the proceedings in Cases ZBA2026-055 and ZBA2026-063 is attached as Exhibit A.

V. Relief Requested

WHEREFORE, the Movants respectfully request that the Board:

38. Grant a rehearing of its September 10, 2026 decision in Case No. ZBA2026-063;
39. On rehearing, require the applicant to carry its burden on each criterion of RSA 674:33 with evidence in the record, and deny the application;
40. In the alternative, reopen the public hearing so that the parties may address the slope information and the property-value opinion introduced during deliberation;
41. Direct that the basis for treating the slope deduction as a hardship, and the basis of the property-value opinion, be stated on the record;
42. Direct that Vice Chair St. Pierre not participate in the vote on this motion or in any rehearing; and
43. Grant such further relief as is just.

Respectfully submitted,

Nickolas J. Levasseur

Alison Famisan-Levasseur

30 Mystic Street, Manchester, NH 03103

30 Mystic Street, Manchester, NH 03103

(603) 361-3828

Date: **[date of filing]**

[Additional signature lines for abutters who join, or delete]

Certificate of Service

I certify that on **[date]** a copy of this motion was sent by first-class mail and email to the applicant, T&L 2018, LLC, 156 Lowell Road, Hudson, NH 03051, and to its agent, The Dubay Group, Inc., c/o Doug MacGuire, 136 Harvey Road, Bldg B101, Londonderry, NH 03053.

Nickolas J. Levasseur